



January 13, 2026

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## SENATE BILL No. 211

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DIGEST OF SB 211 (Updated January 12, 2026 11:49 am - DI 149)

**Citations Affected:** IC 3-13.

**Synopsis:** Cancellation of caucus meeting. Allows a person who wishes to be a candidate for a pro tempore appointment to certain local offices or school board offices to file a declaration of candidacy with the chair of the caucus or the circuit court clerk. Allows a notice of a caucus meeting to be rescinded if only one candidate seeks to fill a vacancy in a local office or a school board office held by a major party.

**Effective:** July 1, 2026.

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### Holdman

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January 8, 2026, read first time and referred to Committee on Elections.  
January 12, 2026, amended, reported favorably — Do Pass.

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SB 211—LS 6644/DI 149





January 13, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

## SENATE BILL No. 211

A BILL FOR AN ACT to amend the Indiana Code concerning elections.

*Be it enacted by the General Assembly of the State of Indiana:*

- 1 SECTION 1. IC 3-13-11-3, AS AMENDED BY P.L.278-2019,
- 2 SECTION 162, IS AMENDED TO READ AS FOLLOWS
- 3 [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) Except as provided in
- 4 subsections (b) and (e) and section 3.5 of this chapter, after a vacancy
- 5 occurs and not later than ten (10) days after a vacancy occurs in an
- 6 office subject to this chapter, the county chairman:
- 7 (1) of the county in which the greatest percentage of the
- 8 population of the election district of the office is located; and
- 9 (2) of the same political party that elected or selected the official
- 10 who vacated the office;
- 11 shall give notice of a caucus to all eligible precinct committeemen.
- 12 (b) A county chairman may give notice of a caucus before the time
- 13 specified under subsection (a) if a vacancy will exist because the
- 14 official has:
- 15 (1) submitted a written resignation under IC 5-8-3.5;
- 16 (2) been elected to another office; or
- 17 (3) submitted a notice under IC 5-9-4 to take a leave of absence

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for active duty in the armed forces or national guard.

(c) Notwithstanding IC 5-8-4, a person may not withdraw the person's resignation after the resignation has been accepted by the person authorized to accept the resignation less than seventy-two (72) hours before the announced starting time of a caucus under this section.

(d) Except as provided in subsections (e) and (f) and ~~section~~ **sections 3.5 and 10(c)** of this chapter, a caucus under this section shall be held after giving notice to caucus members under section 4 of this chapter and not later than thirty (30) days after the vacancy occurs.

(e) If a vacancy exists in an office because of the death of the officeholder, the caucus shall meet and select an individual to fill the vacancy not later than thirty (30) days after the county chairman receives notice of the death under IC 5-8-6. The county chairman shall give notice to caucus members under section 4 of this chapter. The county chairman may not give the notice required by section 4 of this chapter until the county chairman receives notice of the death under IC 5-8-6.

(f) If a person or entity that receives notice of a resignation under IC 5-8-3.5-1(b) fails to provide timely notice of the resignation to the person or entity with the power to fill the vacancy or call the caucus, the person or entity with the power to fill the vacancy or call that caucus:

(1) may immediately proceed to fill the vacancy or call the caucus without prior receipt of the notice; and

(2) must do so not later than thirty (30) days after receiving the notice from the person or entity that received the notice of resignation.

SECTION 2. IC 3-13-11-3.5, AS AMENDED BY P.L.119-2005, SECTION 24, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3.5. (a) If a vacancy exists on a town council because a circumstance has occurred under IC 36-5-2-6.5(3), **except as provided in section 10(c) of this chapter**, the caucus shall meet and select an individual to fill the vacancy not later than thirty (30) days after the county chairman receives a notice of the vacancy under IC 5-8-5.

(b) The county chairman shall:

(1) give notice of the caucus meeting to caucus members under section 4 of this chapter; and

(2) keep the notice of the vacancy with the records of the caucus.

SECTION 3. IC 3-13-11-7 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) This section does not apply to a vacancy filled by a county chairman under section 5(c)



1 of this chapter.

2 (b) A person who wishes to be a candidate for pro tempore  
3 appointment to fill a vacancy under this chapter must file:

4 (1) a declaration of candidacy with:

5 (A) the chairman of the caucus; ~~and~~ or

6 (B) the circuit court clerk; and

7 (2) a statement of economic interests with the commission on  
8 judicial qualifications if the vacancy is in the office of prosecuting  
9 attorney;

10 at least seventy-two (72) hours before the time fixed for the caucus.

11 SECTION 4. IC 3-13-11-10, AS AMENDED BY P.L.240-2025,  
12 SECTION 34, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
13 JULY 1, 2026]: Sec. 10. (a) Except as provided in subsection (c), the  
14 members of a caucus held under this chapter shall select, by a majority  
15 vote of those casting a vote for a candidate, a person to fill the vacancy  
16 described in the written notice of the caucus.

17 (b) If more than one (1) person seeks to fill the vacancy, the  
18 selection shall be conducted by secret ballot.

19 (c) The following apply if only one (1) person seeks to fill the  
20 vacancy:

21 **(1) The notice for a caucus sent under section 4 of this chapter**  
22 **may be rescinded and the caucus is not required to meet.**

23 ~~(+)~~ (2) A vote under subsection (a) is not required.

24 ~~(2)~~ (3) The county chairman may select that person to fill the  
25 vacancy.



## COMMITTEE REPORT

Mr. President: The Senate Committee on Elections, to which was referred Senate Bill No. 211, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 2, between lines 39 and 40, begin a new paragraph and insert:

"SECTION 3. IC 3-13-11-7 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) This section does not apply to a vacancy filled by a county chairman under section 5(c) of this chapter.

(b) A person who wishes to be a candidate for pro tempore appointment to fill a vacancy under this chapter must file:

(1) a declaration of candidacy with:

(A) the chairman of the caucus; ~~and~~ or

(B) the circuit court clerk; and

(2) a statement of economic interests with the commission on judicial qualifications if the vacancy is in the office of prosecuting attorney;

at least seventy-two (72) hours before the time fixed for the caucus."

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to SB 211 as introduced.)

GASKILL, Chairperson

Committee Vote: Yeas 7, Nays 2.

